

**SENATE SUBSTITUTE FOR
HOUSE BILL NO. 4808**

A bill to amend 1976 PA 267, entitled
"Open meetings act,"
by amending section 3a (MCL 15.263a), as amended by 2025 PA 54.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 3a. (1) A meeting of a public body held, in whole or in
2 part, electronically by telephonic or video conferencing in
3 compliance with this section and, except as otherwise required in
4 this section, all of the provisions of this act applicable to a
5 nonelectronic meeting, is permitted by this act in the following
6 circumstances:

7 (a) Before March 31, 2021 and retroactive to March 18, 2020,
8 any circumstances, including, but not limited to, any of the
9 circumstances requiring accommodation of absent members described



1 in section 3(2).

2 (b) Subject to subdivision (d), on and after March 31, 2021
3 through December 31, 2021, only those circumstances requiring
4 accommodation of absent members described in section 3(2). For the
5 purpose of permitting an electronic meeting due to a local state of
6 emergency or state of disaster, this subdivision applies only as
7 follows:

8 (i) To permit the electronic attendance of a member of the
9 public body who resides in the affected area.

10 (ii) To permit the electronic meeting of a public body that
11 usually holds its meetings in the affected area.

12 (c) Subject to subdivisions (d) to ~~(g)~~, **(h)**, after December
13 31, 2021, only in the circumstances requiring accommodation of
14 members absent due to military duty as described in section 3(2).

15 (d) On and after March 31, 2021, for a public body that is an
16 agricultural commodity group, any circumstances, including, but not
17 limited to, any of the circumstances requiring accommodation of
18 absent members described in section 3(2). As used in this
19 subdivision, "agricultural commodity group" means any of the
20 following:

21 (i) A committee as that term is defined in section 2 of the
22 agricultural commodities marketing act, 1965 PA 232, MCL 290.652.

23 (ii) The state beef industry commission created in section 3 of
24 the beef industry commission act, 1972 PA 291, MCL 287.603.

25 (iii) The potato industry commission created in section 2 of
26 1970 PA 29, MCL 290.422.

27 (iv) The Michigan bean commission created in section 3 of 1965
28 PA 114, MCL 290.553.

29 (e) On and after February 13, 2024, for a public body that is



1 responsible for the investment, administration, or management of a
 2 municipal public employee retirement system, any circumstances,
 3 including, but not limited to, any of the circumstances requiring
 4 accommodation of absent members described in section 3(2). As used
 5 in this subdivision, "municipal public employee retirement system"
 6 means a retirement system as that term is defined in section 3 of
 7 the protecting local government retirement and benefits act, 2017
 8 PA 202, MCL 38.2803. A public body that is eligible to meet
 9 remotely under this subdivision shall set and publish an attendance
 10 policy that includes the determination of a quorum with 1 or more
 11 members participating electronically.

12 (f) On and after February 13, 2024, for a public body that is
 13 a joint agency formed under article 3 of the Michigan energy
 14 employment act of 1976, 1976 PA 448, MCL 460.831 to 460.848, any
 15 circumstances, including, but not limited to, any of the
 16 circumstances requiring accommodation of absent members described
 17 in section 3(2). As used in this subdivision, "joint agency"
 18 includes a joint agency's board of commissioners and any committee
 19 of the joint agency.

20 **(g) On and after the effective date of the amendatory act that**
 21 **added this subdivision, for the state board created as the children**
 22 **trust Michigan board in section 3 of the child abuse and neglect**
 23 **prevention act, 1982 PA 250, MCL 722.603, any circumstances,**
 24 **including, but not limited to, any of the circumstances requiring**
 25 **accommodation of absent members described in section 3(2).**

26 **(h) ~~(g)~~**—The prerequisite circumstances to holding an
 27 electronic meeting described in subdivision (c) do not apply to an
 28 electronic proceeding held under section 26, 34, or 62 of the tax
 29 tribunal act, 1973 PA 186, MCL 205.726, 205.734, and 205.762.



(2) A meeting of a public body held electronically under this section must be conducted in a manner that permits 2-way communication so that members of the public body can hear and be heard by other members of the public body, and so that public participants can hear members of the public body and can be heard by members of the public body and other participants during a public comment period. A public body may use technology to facilitate typed public comments during the meeting submitted by members of the public participating in the meeting that may be read to or shared with members of the public body and other participants to satisfy the requirement under this subsection that members of the public be heard by others during the electronic meeting and the requirement under section 3(5) that members of the public be permitted to address the electronic meeting.

(3) Except as otherwise provided in subsection (8), a physical place is not required for an electronic meeting held under this section, and members of a public body and members of the public participating electronically in a meeting held under this section that occurs in a physical place are to be considered present and in attendance at the meeting for all purposes.

(4) If a public body directly or indirectly maintains an official internet presence that includes monthly or more frequent updates of public meeting agendas or minutes, the public body shall, in addition to any other notices that may be required under this act, post advance notice of a meeting held electronically under this section on a portion of the public body's website that is fully accessible to the public. The public notice on the website must be included on either the homepage or on a separate webpage dedicated to public notices for nonregularly scheduled or



1 electronic public meetings that is accessible through a prominent
2 and conspicuous link on the website's homepage that clearly
3 describes its purpose for public notification of nonregularly
4 scheduled or electronic public meetings. Subject to the
5 requirements of this section, any scheduled meeting of a public
6 body may be held as an electronic meeting under this section if a
7 notice consistent with this section is posted at least 18 hours
8 before the meeting begins. Notice of a meeting of a public body
9 held electronically must clearly explain all of the following:

10 (a) Why the public body is meeting electronically.

11 (b) How members of the public may participate in the meeting
12 electronically. If a telephone number, internet address, or both
13 are needed to participate, that information must be provided
14 specifically.

15 (c) How members of the public may contact members of the
16 public body to provide input or ask questions on any business that
17 will come before the public body at the meeting.

18 (d) How persons with disabilities may participate in the
19 meeting.

20 (5) Beginning on October 16, 2020, if an agenda exists for an
21 electronic meeting held under this section by a public body that
22 directly or indirectly maintains an official internet presence that
23 includes monthly or more frequent updates of public meeting agendas
24 or minutes, the public body shall, on a portion of the website that
25 is fully accessible to the public, make the agenda available to the
26 public at least 2 hours before the electronic meeting begins. This
27 publication of the agenda does not prohibit subsequent amendment of
28 the agenda at the meeting.

29 (6) A public body shall not, as a condition of participating



1 in an electronic meeting of the public body held under this
 2 section, require a person to register or otherwise provide the
 3 person's name or other information or otherwise to fulfill a
 4 condition precedent to attendance, other than mechanisms
 5 established and required by the public body necessary to permit the
 6 person to participate in a public comment period of the meeting.

7 (7) Members of the general public otherwise participating in a
 8 meeting of a public body held electronically under this section are
 9 to be excluded from participation in a closed session of the public
 10 body held electronically during that meeting if the closed session
 11 is convened and held in compliance with the requirements of this
 12 act applicable to a closed session.

13 (8) At a meeting held under this section that accommodates
 14 members absent due to military duty or a medical condition, only
 15 those members absent due to military duty or a medical condition
 16 may participate remotely. Any member who is not on military duty or
 17 does not have a medical condition must be physically present at the
 18 meeting to participate. This subsection does not apply to a meeting
 19 of a public body held electronically under subsection (1)(d), (e),
 20 ~~or (f)~~, **or (g)**, or to a proceeding described in subsection
 21 ~~(1)(g)~~. **(1)(h)**.

22 Enacting section 1. This amendatory act does not take effect
 23 unless all of the following bills of the 103rd Legislature are
 24 enacted into law:

25 (a) Senate Bill No. 418.

26 (b) Senate Bill No. 421.

27 (c) House Bill No. 4805.

